

Mohd Usman Ansari v. Chairman, Uttar Pradesh Power Corporation Ltd. & 4 Others

Allahabad High Court · Division Bench · 5 August 2025 · 2025:AHC:131084-DB · WRIT - C No. 23421 of 2025 · **Writ petition disposed of; opportunity of hearing directed, final assessment within 12 weeks, no coercive recovery meanwhile**

HEADNOTE

Where a recovery certificate under s.9 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 is issued in pursuance of an ex-parte provisional assessment under s.126(1)/(2) of the Electricity Act, 2003 read with Clauses 3.1, 3.7, 6.1, 6.8 and 6.9 of the U.P. Electricity Supply Code, 2005, without a formal adjudication/hearing, the consumer is entitled to an opportunity of hearing before a final assessment is made; pending such final assessment (to be completed within 12 weeks), no coercive recovery measures may be taken.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

A recovery certificate founded on an ex-parte provisional s.126 assessment, issued without following the Supply Code's assessment procedure, entitles the consumer to a hearing and a reasoned final assessment before coercive recovery

QUESTION

Can a recovery certificate under s.9 of the 1958 Dues Recovery Act be enforced where it is founded on an ex-parte provisional assessment under s.126, made without following the Supply Code's assessment/hearing procedure?

HOLDING

The Court directed that an opportunity of hearing be granted to the petitioner, with a final assessment to be carried out by the authorities within 12 weeks; until the final assessment order is passed, no coercive recovery measures may be taken against the petitioner. ¶ paras 3-4

LIMITING FACTS

Recovery Certificate dated 17.1.2025 for Rs. 6,38,679/- plus collection charges was issued under s.9 of the 1958 Act pursuant to a demand notice dated 30.7.2020 based on an ex-parte provisional assessment under s.126(1)/(2) of the Electricity Act, 2003, without formal adjudication under the Supply Code.

PRINCIPLE TAGS

ex-parte-s126-assessment-requires-hearing-before-recovery A recovery certificate founded on an ex-parte provisional s.126 assessment, made without following the Supply Code's assessment/hearing procedure, cannot be coercively enforced until the consumer is given a hearing and a reasoned final assessment is passed. ¶ paras 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS/QUANTUM OF THE UNDERLYING ELECTRICITY DUES (RS. 6,38,679/-)

Not decided; to be determined by the final assessment after a hearing. ¶ para 3